

Portugal 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Portugal during the year.

There were no credible reports of significant human rights abuses.

The government took credible steps to identify and punish officials who committed human rights abuses.

Section 1. Life

a. Extrajudicial Killings

There were no reports the government or its agents committed arbitrary or unlawful killings during the year.

On October 21, however, a Public Security Police (PSP) officer shot and killed Cabo Verdean immigrant Odair Moniz following a chase in Lisbon. The incident led to a wave of riots in immigrant neighborhoods in Greater Lisbon, which included vandalism and arson, and which led to several arrests. The Judicial Police opened an investigation into the PSP officer's conduct and confiscated his weapon. On October 26, thousands of individuals demonstrated demanding justice for Moniz, holding signs with

slogans such as “Stop killing us.” The Chega party, whose leader André Ventura said the officer should have been “decorated” and pointed to reports Moniz had a “long” criminal record, led a pro-police counterprotest on the same day that drew approximately 300 persons.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution and law provided for freedom of expression, including for members of the press and other media, and the government generally respected this right. An independent media, an effective judiciary, and a functioning democratic political system combined to promote freedom of expression, including for media members.

The law criminalized the denigration of ethnic or religious minorities, as well as Holocaust denial. The law also criminalized offending or deriding a person’s religious beliefs and insulting an act of worship. Authorities rarely invoked these charges.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the right of most workers to form and join independent unions, bargain collectively, and conduct legal strikes. The government generally respected these rights. The law prohibited antiunion discrimination and required reinstatement of workers fired for union activity.

While the law provided for freedom of association and collective bargaining, several restrictions limited these rights. Unions considered the list of essential sectors to be overly broad. Unions reported the effectiveness of strikes was limited by compulsory conciliation and arbitration as prerequisites to strikes, restrictions on the scope of strikes, and restrictions on the types of strike actions permitted.

The law required unions to represent at least 50 percent of workers in a sector for collective bargaining units to be extended beyond the enterprise level. Public-sector employee unions had the right to discuss and consult with their employers on conditions of work, but they did not have the right to negotiate binding contracts. There was a lack of clarity regarding criteria for union representation in the Permanent Commission for Social Partnerships, a tripartite advisory body. The law named specific unions, rather than giving participation rights to the most representative unions.

The government effectively enforced these laws. Penalties for violations ranged from fines to imprisonment and were commensurate with those for other laws involving denials of civil rights, such as discrimination. Penalties were regularly applied against violators. Administrative and judicial procedures were subjected to lengthy delays or appeals.

Authorities generally respected freedom of association and the right to collective bargaining. Worker organizations generally operated free from government interference. Requirements for enterprise-level bargaining by work councils sometimes prevented local union representatives from bargaining directly on behalf of workers. There were instances of employers undermining strikes using last-minute minimum-service requirements. According to labor union representatives, some workers received threats that union participation would result in negative performance reviews.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The law provided for a minimum wage that covered full-time workers, rural workers, and domestic employees who were at least age 18.

Violations of wage, hour, and overtime laws were most common in the farming and fishing sectors. Some workers faced labor market segmentation as employers applied alternative forms of employment such as temporary agency work and independent contractors. These types of employment – including in the agriculture and services sectors – left workers in insecure positions, without access to a reliable income, and impacted those most vulnerable in society, particularly immigrants.

Occupational Safety and Health

Occupational safety and health (OSH) standards were set by the Working Conditions Authority (ACT) and were appropriate for the main industries in the country. ACT inspectors proactively identified unsafe conditions. Workers could remove themselves from situations that endangered health or safety without jeopardy to their employment, and authorities effectively protected employees in this situation. There were reports of alleged violations of OSH standards in sectors such as agriculture and services.

Wage, Hour, and OSH Enforcement

The ACT was responsible for enforcement of wage, hour, and OSH standards in the formal sector. The government effectively enforced the laws, and penalties for violations of laws were commensurate with those for crimes such as fraud or negligence and were sufficient to deter violations and enforce compliance. Penalties were sometimes applied against violators for

wage, hour, and OSH violations. Inspections, the number of inspectors, and remediation were adequate, according to the ACT. Inspectors had authority to conduct unannounced inspections and initiate sanctions.

Workers had the right to file confidential grievances with the ACT regarding hazardous conditions or circumstances they believed endangered their health. Inspectors had the right to conduct inspections at any private or public company at any time without warning, and they could shut down a workplace or a business permanently or temporarily if there was imminent danger to workers' health or safety. Workers were registered with social security services, whose funds covered their mandatory insurance for occupational diseases and work-related accidents. The ACT conducted studies on labor accidents, salaries, and working conditions. It could impose administrative penalties and file lawsuits against employers. It had the right to access company records, files, and archives, and it could provide mediation services to resolve individual or group labor disputes. Labor enforcement tended to be less rigorous in sectors such as construction and agriculture, where there were many small or family businesses and where most immigrant workers were employed, according to nongovernmental organizations.

According to a study by the School of Economics and Management of the University of Porto, the informal economy represented 34.37 percent of GDP in 2022, corresponding to more than €82 million (\$88.6 million).

Workers in the informal sector were covered by labor laws, although there were reports illegalities were challenging to detect and control, making it difficult for the government to adequately enforce labor laws.

c. Disappearance and Abduction

Disappearance

There were no reports of enforced disappearances by or on behalf of government authorities.

Prolonged Detention without Charges

The constitution and federal law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government generally observed these requirements.

Authorities respected the requirement that a suspect appear before an investigating judge within 48 hours of arrest. By law, the investigating judge determined whether an arrested person should be detained, released on bail, or released outright. Investigative detention for most crimes was limited to four months. If authorities did not file a criminal charge within that period, they were required to release the detainee. In cases of serious crimes such as murder, armed robbery, terrorism, violent or organized crime, and crimes involving more than one suspect, the investigating judge

could hold a suspect in detention for up to 18 months during the investigation, and up to three years in extraordinary circumstances.

A bail system existed, but authorities generally did not release detainees on their own recognizance. Depending on the severity of the crime, a detainee's release could be subjected to various legal conditions.

Detainees had the right to legal counsel of their choice from the time of arrest. If detained persons could not afford a private lawyer, the government appointed one and assumed legal costs. Independent monitors asserted some detainees only were able to meet their court-appointed lawyer for the first time at their hearing before a judge.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or

Punishment

While the constitution and law prohibited torture and other cruel, inhuman, or degrading treatment or punishment, there were credible reports of excessive use of force by police and of mistreatment and other forms of abuse of prisoners by prison guards. Complaints of physical abuse, including by police during routine arrests, consisted primarily of slaps, punches, and kicks to the body and head, as well as beatings with batons. The complaints were mainly against the Public Security Police and the Republican National Guard. The Inspectorate General of Internal Administration investigated complaints. Punishment ranged from letters of reprimand, temporary suspension from duty, mandatory retirement with pension cuts, discharge from duty, and prison sentences for those tried and convicted.

b. Protection of Children

Child Labor

There was no significant presence of the worst forms of child labor. The law prohibited all the worst forms of child labor. The statutory minimum age for employment was 16. The law prohibited the employment of persons younger than 18 at night, for overtime work, or in sectors considered hazardous. The ACT in the Ministry of Solidarity, Employment, and Social Security had primary responsibility for enforcement of the minimum age law. The government effectively enforced applicable laws, and penalties

were commensurate with those for other serious crimes. Penalties were sometimes applied against violators.

Child labor occurred in limited cases. Parents in the Romani community sometimes instructed their children to beg for money. Although infrequent, forced begging through criminal enterprise occurred.

Child Marriage

The minimum age for marriage was 18, but both sexes could marry at 16 with the consent of both parents, a guardian, or a court decision.

Authorities effectively enforced the law.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Provision of First Asylum

The law provided for the granting of asylum or refugee status, and the government had a system for providing protection to refugees. Experts raised concerns regarding what they considered to be shortcomings in the government's efforts to proactively identify trafficking victims among

asylum seekers.

Resettlement

Under the EU's relocation plan for refugees who entered the EU through Greece and Turkey, the government received refugees. It offered naturalization to refugees residing within the country's territory and other durable solutions, such as the right to work, education, access to health care, and housing support.

d. Acts of Antisemitism and Antisemitic Incitement

Estimates placed the Jewish population at 3,000 to 4,000 persons.

In May, the Chega political party's top candidate for the European Parliament and the country's former ambassador to Israel, Antonio Tanger Correa, suggested in an interview that Jews had been warned regarding the September 11, 2001, terrorist attacks in New York. He was elected to the European Parliament in July.

There were multiple accounts of vandalism to Jewish sites and property.

For further information on incidents in the country of antisemitism, whether or not those incidents were motivated by religion, and for reporting on the ability of Jews to exercise freedom of religion or belief, please see the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

